

ACTS

OF THE

GENERAL ASSEMBLY

OF

VIRGINIA, Laws, Statutes, etc.

PASSED AT THE SESSION COMMENCING DECEMBER 7, 1846, AND
ENDING MARCH 23, 1847,

IN THE

SEVENTY-FIRST YEAR OF THE COMMONWEALTH.

RICHMOND:

SAMUEL SHEPHERD—PRINTER TO COMMONWEALTH.

1847.

lawful voters of the county are required to vote, now authorized to be held at the residence of Joseph Painter, (formerly John M'Kay's,) sometimes called Cedarville, in the county of Warren, shall hereafter be held at the Cedarville schoolhouse, near the same place.

2. This act shall be in force from the passing thereof.

Commencement.

CHAP. 51.—An ACT authorizing a separate election at the Union meeting house in the county of Barbour, and for other purposes.

[Passed March 20, 1847.]

1. *Be it enacted by the general assembly, That* whenever hereafter an election shall be held in the counties of Barbour, Randolph and Ritchie, in which all the lawful voters of said counties are required to vote, there shall be at the same time separate polls opened and held for such election at the Union meeting house, in Barker's settlement in the county of Barbour, and at the house of John S. Hart, on Leading creek in the county of Randolph, and at the house of John Harris, on Grass run in the county of Ritchie.

Separate elections in Barbour, Randolph and Ritchie.

2. *Be it further enacted, That* the precinct election heretofore held at the house of Samuel Rodehover, in the town of Brandonville in the county of Preston, shall hereafter be held at the house of John Scott in said town.

Separate election in Preston changed.

3. This act shall be in force from the passing thereof.

Commencement.

CHAP. 52.—An ACT amending an act, entitled "an act changing the place of holding a separate election in the county of Mason, and for other purposes," passed February 17th, 1845.

[Passed March 16, 1847.]

1. *Be it enacted by the general assembly, That* so much of the act, entitled "an act changing the place of holding a separate election in the county of Mason, and for other purposes," passed February the seventeenth, eighteen hundred and forty-five, as requires the clerks of the several counties of the state, to make out annual lists of titheables and property for the use of commissioners at election precincts, shall be and the same is hereby amended so as to require the commissioners of the revenue in the several counties to furnish the lists aforesaid, instead of the clerks as now required by law.

Commissioners of revenue to make out lists of titheables and property for election precincts. Acts 1844-5, c. 38, § 2, p. 37.

2. This act shall be in force from the passage thereof.

Commencement.

CHAP. 53.—An ACT to extend the jurisdiction of the commonwealth of Virginia over the county of Alexandria.

[Passed March 13, 1847.]

1. *Be it enacted by the general assembly of the commonwealth of Virginia, That* the territory comprising the county of Alexandria, in the District of Columbia, heretofore ceded by this commonwealth to the United States, and by an act of congress approved on the ninth day of July eighteen hundred and forty-six, retroceded to this commonwealth, and by it accepted, is hereby declared to be an integral portion of this commonwealth, and the citizens thereof are hereby declared to be subject to all the provisions, and entitled to all the benefits, rights and privileges of the bill of rights and constitution of this commonwealth.

Territory of Alexandria declared part of Virginia.

Rights and privileges of citizens.

2. That from and after the twentieth day of March eighteen hundred and forty-seven, the public and general laws of this commonwealth then in force, and the common law, as it is recognized in this commonwealth, shall be the law of said territory, subject to the exceptions and provisions hereinafter contained.

What to be the law for county.

County of Alexandria formed.

Location of courthouse.
Representation.

Congressional, senatorial and electoral districts.

Elections where to be held.

Separate elections, where and how governed.

Judicial district and circuit.

What judge to preside.

His compensation.

Circuit courts when to be held.

Term how long to continue.

Monthly and quarterly terms of county court.

Clerk of court, attorney for commonwealth and commissioner of revenue to be appointed.
See post. c. 54. Sheriff and coroner to be nominated.

Other officers to be elected.

3. That the territory so retroceded and accepted, comprising the county of Alexandria, shall constitute a new county, retaining the name of the county of Alexandria, the courthouse whereof shall be in the town of Alexandria where the courts now sit; and the said county of Alexandria and the county of Fairfax, shall together elect one delegate to the house of delegates of this commonwealth until a reapportionment shall take place, or until otherwise provided by the general assembly.

4. The said county of Alexandria shall belong to the same congressional district, the same senatorial district, and to the same electoral district (for the purpose of choosing a president and vice-president of the United States) as the county of Fairfax. And elections for a delegate and senator to the general assembly of this commonwealth, for a member of the house of representatives of the United States, and for electors to choose a president and vice-president of the United States, shall be held at the courthouse of the county of Alexandria. And in all such elections a separate poll shall be held at the tavern house of ——— Thompson, at Ball's cross roads, which said election shall be conducted according to, and all persons concerned therein governed by, the act, entitled "an act concerning general elections in this commonwealth," passed the second day of April eighteen hundred and thirty-one, and all subsequent acts and parts of acts concerning general elections in this commonwealth.

5. That the said county of Alexandria shall be annexed to the third judicial district, and compose a part of the sixth judicial circuit of this commonwealth. And a circuit superior court of law and chancery shall be established and held twice in every year, in and for said county, at the courthouse thereof, by the judge of the sixth judicial circuit, who shall receive as additional compensation for holding said courts the sum of three hundred dollars: *Provided however*, That the additional compensation hereby given shall not extend beyond the expiration of the term of service of the present incumbent.

6. That the sessions of the said circuit superior court of law and chancery shall be held in and for said county on the second Monday in June and November in every year; which said court shall sit until the business thereof shall be despatched, unless the judge holding the same shall sooner be compelled to leave the court in order to arrive in time at the next succeeding court of the circuit.

7. That a county court shall be established and held in and for the county of Alexandria on the first Monday in each month; and the quarterly terms of said court shall be held in the months of March, June, September and November, in every year, and may sit as long as the business of the court may require.

8. That the justices of the peace for said county, hereafter to be commissioned and qualified, in and for said county, (two thirds or more of said justices being present,) shall proceed at the first session of said court to appoint a clerk of said county court, an attorney for the commonwealth, and a commissioner of the revenue; and shall at the same time nominate to the governor of this commonwealth suitable persons to be commissioned as sheriff and coroner of said county; and may then or thereafter appoint any other officers of said court, or of said county, which by the laws of this commonwealth county courts are empowered to appoint; and to nominate to the governor of this commonwealth for commissions, in the same manner that the other county courts of this commonwealth are empowered to nominate; and in making such appointments and nominations the said courts shall be governed in all respects by the laws of this common-